

SANDERS v LUHRASSEBI, et al

25CV48021

PLAINTIFF'S MOTION FOR PROTECTIVE ORDER

Lynne Sanders ("Plaintiff") filed her Complaint arising out of allegations of predatory lending against Loancutters, Inc. dba Evoque Lending ("Evoque"), Mehdi Luhrassebi ("Luhrassebi"), Frank Ortiz ("Ortiz"), Lee Kulick ("Kulick"), and Pasquale Chiechi and Antonia Chiechi as Co-Trustees of the Chiechi Family Trust dated February 4, 1993 ("Lenders.")

Now before the Court is Plaintiff's motion for protective order against Special Interrogatories (SROGs) propounded by Evoque. The Court has considered the opposition filed by Evoque but disregards the opposition filed by Lenders, as they are not involved in the discovery in dispute.

I. Factual and Procedural Background

A. Factual Background

Evoque is a residential mortgage and/or private money-lending corporation primarily engaged in commercial and residential lending. (SAC ¶ 23.) Luhrassebi is believed to be the sole officer of Evoque and acts as its CEO, Secretary, CFO, and agent of service of process. (*Id.* ¶ 24.) Kulick is a senior loan consultant for Evoque and is alleged to have acted as an agent for Evoque. (*Id.* ¶ 26.)

Plaintiff has lived in the home located at 632 HWY 4, Murphys, CA 95237 (the "Property") since 1996 (SAC ¶ 2.) In 2022, Plaintiff began to suffer financial difficulties. At that time, however, she did not have a mortgage (having previously paid it entirely off), her credit score was 579, and she had a monthly income of \$1,300.00. (*Id.* ¶ 4.) Based on advertisements, Plaintiff reached out to Evoque which told her that her credit score did not matter and that the loan would fund quickly. (*Ibid.*)

Plaintiff alleges that she was very clear with Evoque's agents that the purpose of any loan was personal and had nothing to do with starting or operating a business. (*Id.* 40.) Nonetheless, Plaintiff alleges that she was repeatedly instructed to sign paperwork representing that the Loan was for business purposes, such as advertising and supplies, and that it was for the purpose of a non-existent company called "Lynn Sanders Housekeeping Services." (*Id.* ¶¶ 7, 39.) At the same time, Plaintiff alleges that her monthly income was fraudulently changed on the form from \$1300 to \$1800. (*Id.* ¶ 9.) Other forms filled out apparently on her behalf also contained false information. (*Ibid.*)

In September of 2022, Plaintiff was offered a commercial bridge loan ("Loan.") (SAC ¶ 43.) Though structured as a commercial loan, the Loan was secured by a Deed of Trust by the Lenders on the Property. Plaintiff alleges that the Lenders are the beneficiaries of the Loan. (*Ibid.*) Evoque is alleged to have acted as a dual agent for both Plaintiff and the Lenders. (*Id.* ¶ 41.) The Loan was structured as a commercial, interest-only, hard money loan, with a principal amount of \$115,000 and an initial rate of 9.99%. (SAC ¶ 43.)

Plaintiff alleges that Evoque Defendants were aware that she did not have sufficient earning power to make the necessary payments on the defined Loan terms. (SAC ¶ 48.) She alleges that they seized the opportunity and fraudulently mischaracterized the Loan as a "non-consumer fiduciary loan." (*Ibid.*)

Plaintiff made a consistent and good faith effort to meet her loan obligations by making twenty-one interest-only payments totaling \$14,475.32 between 2023 and 2024. (SAC ¶ 55.) On December 31, 2024, the loan maturity date, the balloon installment of interest became due and payable. Plaintiff received a statement demanding a balance of \$123,779.11. To date, Plaintiff now owes a total of \$126,806.24, more than the actual loan amount itself. (*Ibid.*)

In February 2025, Plaintiff received a notice from FCI Lender Service, Inc., the Lenders' authorized servicing agent, instructing her to pay the balance due, \$126,020.13 by March 29, 2025, or risk foreclosure of her home. (SAC ¶ 18.)

B. Discovery

This action was filed a little over one year ago on April 23, 2025. Shortly thereafter, in October 2025, Plaintiff served discovery on Defendants, including Evoque. To date, Plaintiff has served 7 specially prepared interrogatories, 7 requests for admission, 26 document requests, and Judicial Council Form Interrogatories. (Declaration of Kelly W. Weil "Weil Decl." at ¶ 2.)

On February 18, 2026, Evoque served the following discovery on Plaintiff: 161 specially prepared interrogatories, 83 requests for admission, 141 document requests, and Judicial Council Form Interrogatories (including 17.1 requests). (Weil Decl. at ¶ 3.) Evoque granted Plaintiff an extension to respond to the discovery requests on three different occasions. Plaintiff has now provided written responses to all requests that are not subject to the instant motion.

On April 20, 2026, Plaintiff sent a meet-and-confer correspondence to Evoque identifying the interrogatories as problematic and harassing. (Weil Decl. at ¶ 8, Exhibit B.) On April 22, 2026, Evoque responded with a letter, arguing that this protective order was made in bad faith and that the requests were proper. (Weil Decl. at ¶ 9, Exhibit C.) To further attempt to resolve the dispute without court intervention, counsel for Evoque and Plaintiff met over Zoom. (Weil Decl. at ¶ 11.) Counsel had a productive meeting but eventually reached an impasse on each issue identified in this motion. (Weil Decl. at ¶ 12.) Plaintiff sent a confirming email regarding the substance of the meeting. (Weil Decl. at ¶ 13, Exhibit D.) Evoque's counsel agreed to withdraw 11 of the 161: Special Interrogatories No. 76, 82, 91, 93, 94, 95, 98, 99, 103, 105, 106. (Weil Decl. at ¶ 14, Exhibits E.)

Accordingly, at issue are Special Interrogatories 1-75, 77-81, 83-90, 92, 96, 97, 100-102, 104, and 107-160.

II. Legal Standard and Discussion

Pursuant to Code of Civil Procedure § 2030.030(a)(1), a party may propound on another party, as a matter of right, “thirty-five specially prepared interrogatories that are relevant to the subject matter of the action.” Further special interrogatories may be propounded if the party “attaches a supporting declaration” describing why further special interrogatories are warranted based on the complexity or quantity of issues in the case, the financial burden of conducting the discovery by oral deposition, or the expedience of using this method of discovery. (Id. at § 2030.040(a).) Such declaration must be attached to any set of special interrogatories that exceeds the thirty-five limit. (Id. at § 2030.050.)

Pursuant to Code of Civil Procedure § 2030.090, “[t]he court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Id., § 2030.090(b).) The protective order may include, inter alia, that the entire set of interrogatories, or certain interrogatories, need not be answered; or that the number of specially prepared interrogatories is unwarranted. (Id. at §§ 2030.090(b)(1)- (2).) Such motion for a protective order must be made “promptly” and “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2030.090(a).)

There is no specific deadline for a motion for protective order. (See Code Civ. Proc., § 2025.420, subd. (a).) Thus, while Defendant argues that Plaintiffs improperly delayed the motion for protective order, the Court disagrees. Given the vast extent of discovery requests, the timing of the motion for protective order is reasonable. Plaintiff attempted to resolve the matter amicable and without Court interference and when it became clear that this was not possible, promptly filed the motion.¹ The Court further finds there was sufficient meet and confer attempts prior to the motion.

Plaintiff seeks a Protective Order striking or limiting the Special Interrogatories issued to Plaintiff. Plaintiff makes the following arguments:

- (1) The number of requests is not proportional to this action,
- (2) Special Interrogatories No. 22, 26, 27, 36, 64, and 67 are argumentatively or harassingly phrased,
- (3) Special Interrogatories No. 72 through 125, and 127 through 137 call for Plaintiff to state facts already alleged in a verified complaint,
- (4) Special Interrogatories No. 6 through 9, 18, and 53 are overbroad and contain many subparts, and
- (5) Special Interrogatories No. 47, 48, and 61 invade Plaintiff's right to privacy under the California Constitution.

Defendant complains that Plaintiff never specified discovery that is duplicative, burdensome, oppressive, vague, or otherwise improper, and a generalized burden does not show good cause for the Protective Order.

Code of Civil Procedure limits propounding parties to 35 Special Interrogatories. (Code Civ. Proc., § 2030.030(a)(1).) If a responding party objects because the number of interrogatories is unwarranted, then "the propounding party shall have the burden of justifying the number of these interrogatories." (Code Civ. Proc., § 2030.040(b).) As is the case here, because Plaintiff seeks a protective order on the ground that the number

¹Evoque also argues that Motion is improper because it lacks a separate statement. Courts have discretion to deny discovery motions where a filed separate statement lacks the content and format required by the California Rules of Court. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893. However, there is no clear requirement that a motion for protective order requires a separate statement – though it is certainly helpful to the Court. (See, *Lee v. Marriott*, 2025 Cal. Super LEXIS 61679, *2.)

of specially prepared interrogatories is unwarranted, Evoque bears the burden of justifying same.

The factors to consider when determining whether a greater number of interrogatories are warranted include “(1) The complexity or the quantity of the existing and potential issues in the particular case; (2) The financial burden on a party entailed in conducting discovery by oral deposition; (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.” (Code Civ. Proc., § 2030.040(a).)

Evoque does not address these factors. It simply asserts that the amount of money sought by Plaintiff demonstrates that this is a complex matter thus justifying 161 special interrogatories. They also complain that Plaintiff “cherry-picked” the ones to which she would respond and because she responded to some, she essentially waived her right to object to excessive number of special interrogatories. However, Evoque provides no legal authority or support for these contentions.

Weighing the heavy burden of response to 161 special interrogatories and the fact that Defendant has not demonstrated the need for the large number, the Court will limit the SROGS to the first 35.² Because the Court has limited the number to the first 35, it need not address Plaintiff’s concerns with SROGS 36-161.

However, Plaintiff takes issue with SROGs 6-19, 18, 22, 26 and 27. As to these SROGs, Plaintiff bears the burden of showing that the protective order is warranted.

As to SROGs 6-19, Plaintiff seeks a protective order on the grounds that they are overbroad and/or contain many subparts. The Court agrees that the SROGs 6-9, and 12-15 and 18 which seek communication from “anyone” are overly broad because “anyone” could potentially include limitless and timeless communication with neighbors, friends, and even attorneys. The Court also agrees that the reference in SROG 6 to conversations about the “Loan” before the loan application was made may be nonsensical because the “Loan” would not have existed before the application was made and accepted. The Court does not agree that SROGs 16 or 17 are overbroad, vague or contain subparts.

As to SROG 22, it asks: “If there were any LOAN terms that you did not understand as of October 10, 2022, then why did you sign the LOAN DOCUMENTS anyway? Plaintiff objects on the grounds that the question is harassing and simply seeks to support

² The Court is concerned that the excessive number of SROGS were propounded, not in a good faith attempt to gather facts, but in an unwarranted attempt to exhaust or harass the Plaintiff. (Weil Decl. ¶ 5, averring that Evoque’s counsel stated, “As you can see from our recently served discovery requests, my clients are prepared to litigate this matter, and we will be digging into your client’s personal and financial life to find more evidence to undermine her claim.”)

Evoque's theory of the case. The Court disagrees. SROG 22 seeks relevant and discoverable information.

As to SROG 26 and 27, they ask: "Why did you sign the document attached hereto as Exhibit A [and B] if you believed the statements you made in that document were false?" Plaintiff objects to this as both harassing and requiring her to assume facts which have not been established, namely that she believed the statement made in the document were false. Courts have previously concluded that the objection based on the form of the question are intended for live deposition testimony, not when responding to written interrogatories with the advice and counsel of an attorney. (*W. Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d.407, 421.) Plaintiff should answer SROG 26 and 27 and make any objections to the form, content, or appropriateness therein.

Accordingly, and as set forth in this Ruling, the Court **GRANTS the Motion for Protective Order, as specified herein.**

Evoque seeks **sanctions** which are **DENIED.**

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

ECHAVARRIA v FCA US, LLC, et al

25CV48122

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES

This matter involves claims surrounding a car warranty brought by Alexis M. Echavarria ("Plaintiff") against FCA US, LLC ("FCA"), Central Valley Chrysler Jeep Dodge Ram ("Chrysler") and Does 1-10.

Now before the Court is a motion to compel initial disclosures brought by Plaintiff.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.